

3.	<u>30-2023-01355015-CU-BC-CJC</u> Consolidated Electrical Distributors, Inc. vs. Levion Construction, LLC	Plaintiff Consolidated Electrical Distributors, Inc., dba Greentech Renewables, moves for an order to enforce the written settlement agreement between it and defendants Levion Construction, LLC, Christian Macias, and Zachary Winger and enter a joint and severable judgment in its favor against them. Plaintiff also seeks an award of attorneys' fees and costs incurred in connection with this motion. A review of the Register of Actions for this case shows that it does not include any proofs of service for the summons and complaint on the defendants. Nor does it show any pleadings responding to the complaint filed by them. Defendants did, however, sign the settlement agreement that plaintiff included with the motion. According to the proof of service filed with the moving papers, plaintiff served copies of those papers on the defendants by mail and email. However, there is no explanation as to where the addresses and email addresses came from, and the settlement agreement does not appear to have any section regarding where notices to the defendants are to be given or otherwise setting forth their addresses. Thus, plaintiff's counsel should be prepared to address issues regarding service to ensure due process was given. Assuming plaintiff can show service was proper, Code of Civil Procedure section 664.6 provides as follows in subdivision (a): If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. Plaintiff has shown that the parties entered into a written
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		settlement agreement during the pendency of this action as well as a stipulation for judgment as enforcement of the agreement. Plaintiff has also shown that the agreement contains an attorneys' fees provision and that counsel has and will spend about ten (10) hours of time in connection with the motion. Accordingly, and assuming service is appropriately addressed, the motion of plaintiff Consolidated Electrical Distributors, Inc., dba Greentech Renewables, for an order to enforce the written settlement agreement between it and defendants Levion Construction, LLC, Christian Macias, and Zachary Winger through the entry of a joint and severable judgment against them is GRANTED. Plaintiff's request for attorneys' fees of \$3,000 and costs of \$60 is also GRANTED. Plaintiff to give notice.
4.	<u>30-2025-01476678-CU-OE-NJC</u> Hernandez vs. OC & Lau, Inc.	Before the Court are two (2) motions: Motion to Compel Further Responses to Request for Production (ROA 63) and Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 64). On January 8, 2026, Plaintiff Esiquio Hernandez ("Plaintiff") filed the instant Motions against Defendant OC & Lau, Inc., ("Defendant"). ROAs 63, 64. I. Violation of Court Order Under California Code of Civil Procedure Section 2023.010, disobeying a court order to provide discovery is a misuse of the discovery process and is sanctionable conduct. Cal. Civ. Proc. Code § 2023.010. On February 9, 2026, the Court ordered Defendant to supplement responses to Request for Production to include reference to existence or non-existence of responsive documents by no later than March 11, 2026. ROA 83. Defendant failed, without explanation, to supplement the responses by March 11, 2026. ROA 94. Accordingly, sanctions against Defendant in the amount of \$400 are appropriate for this violation.